

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 13
Honorable Daniel T. Nishigaya
R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: June 12, 2026 TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 7	25CV471942	Jun Lu vs Rozita Dadgostari	Hearing: Demurrer Ctrl Click (or scroll down) on Line 7 for tentative ruling.
LINE 8	25CV481385	Amelia Gomez vs Accurate Consolidated Services Inc. et al	Hearing: Demurrer OFF CALENDAR due to the filing of a First Amended Complaint on June 1, 2026.

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Calendar Line 1

Case Name: *ISJ General Trading, LLC vs Capital Asset Exchange and Trading, LLC*
Case No.: 24CV448687

The basis of Defendant/Cross Complainant's motion for judgment on the pleadings is that Plaintiff/Cross Defendant, a corporation, is unrepresented in this litigation. (See *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145 ["[U]nder a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record."].) While it is true that Plaintiff/Cross Defendant cannot prosecute the action without legal counsel, this is not a basis upon which to grant judgment on the claims within the four corners of the pleadings or any facts subject to proper judicial notice.

Nevertheless, Defendant/Cross Complainant's concerns about Plaintiff/Cross Defendant's delinquency in retaining counsel is well taken. Therefore, the Court will set an Order to Show Cause on October 2, 2026, at 10:00 a.m. in Department 13 at which Plaintiff/Cross Defendant shall show cause why the complaint should not be dismissed for failure of Plaintiff/Cross Defendant to obtain counsel, and failure to prosecute, and show cause why Plaintiff/Cross Defendant's answer to the cross complaint should not be stricken for the same reasons.

The Court will prepare the final order.

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